

Franciscus Dylan Rosario,
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E: soltrinox@gmail.com
Plaintiff, In Pro Per

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco

05/26/2026
Clerk of the Court
BY: JEFFREY FLORES
Deputy Clerk

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

REQUEST FOR JUDICIAL NOTICE

(Evid. Code § 451–453)

Dept.: 610

Date: June 24, 2026

**PLAINTIFF’S REQUEST FOR JUDICIAL NOTICE IN SUPPORT OF
RENEWED MOTION FOR LEAVE TO FILE THIRD AMENDED COM-
PLAINT (CCP SECTION 1008(B))**

Case: Rosario v. CSAA Insurance Exchange (CGC-25-631802) **Department:** 302 **Judge:** Hon. Joseph
M. Quinn **Hearing date:** June 24, 2026, 9:00 a.m., Dept. 302 **Filing date:** May 21, 2026 (serve
by Tue, June 2, 2026 per CCP section 1005(b)) **Filed by:** Plaintiff Dylan Franciscus Rosario,
Self-represented

I. REQUEST

Pursuant to Evidence Code sections 451 and 452, subdivisions (a), (b), (c), (d), and (h), Plaintiff
Dylan Franciscus Rosario respectfully requests that this Court take judicial notice of the follow-

ing materials in connection with Plaintiff's Renewed Motion for Leave to File Third Amended Complaint (CCP section 1008(b)) tendered for the June 24, 2026, 9:00 a.m., Dept. 302 hearing line.

Exhibit Index

Ex.	Description	Judicial notice basis
1	JKC3H8 et al. v. James Colton et al. (2013) 221 Cal.App.4th 468 (Third Appellate District; Hoch, J.; review denied), published California Court of Appeal opinion	Evid. Code section 451, subd. (a) (decisional law of the state)
2	Code of Civil Procedure section 1008, subdivisions (a) and (b)	Evid. Code section 451, subd. (a)
3	Code of Civil Procedure sections 472, 473(a)(1), 576, and 425.16, subdivisions (f) and (g)	Evid. Code section 451, subd. (a)
4	California Rules of Court, rule 3.1324, subdivisions (a) and (b)	Evid. Code section 451, subd. (a)

Ex.	Description	Judicial notice basis
5	May 12, 2026 anti-SLAPP order entered by Hon. Joseph M. Quinn in companion case Rosario v. Abdelhalim, CGC-25-631801, Dept. 302, San Francisco Superior Court (verify Transaction ID on SFTC portal)	Evid. Code section 452, subd. (d) (records of any court of this state)
6	Defendant CSAA Insurance Exchange's Opposition to Plaintiff's Motion for Leave to File a Second Amended Complaint, filed April 23, 2026 in CGC-25-631802; specifically, the Introduction page containing the verbatim representation that "Plaintiff cites no authority to support the proposition that he can file his Motion for Leave to Amend, as no such authority exists to support his motion"	Evid. Code section 452, subd. (d) (records of this court)

Ex.	Description	Judicial notice basis
7	April 30, 2026 minute order entered by Hon. Joseph M. Quinn in this action (CGC-25-631802) denying Plaintiff’s Motion for Leave to File a Second Amended Complaint and the related ex parte application for permission to file an oversize brief (with the recital that the Court “did not receive timely notice to contest” the tentative)	Evid. Code section 452, subd. (d) (records of this court)

II. AUTHORITY

A. Evidence Code section 451 (mandatory judicial notice).

Evidence Code section 451 requires judicial notice of the decisional, constitutional, public statutory, and rule-of-court law of the State of California. (Evid. Code section 451, subd. (a).) Exhibits 1, 2, 3, and 4 fall squarely within that mandate: a published California Court of Appeal opinion (Exhibit 1); two California statutes (Exhibits 2 and 3); and a California Rule of Court (Exhibit 4).

B. Evidence Code section 452 (permissive judicial notice).

Evidence Code section 452 permits the court to take judicial notice of, among other things, “[r]ecords of (1) any court of this state or (2) any court of record of the United States or of any state of the United States.” (Evid. Code section 452, subd. (d).) Exhibits 5, 6, and 7 are records of the San Francisco Superior Court and are accordingly the proper subject of permissive judicial notice. Judicial notice is requested as to the existence, filing, and content of those records, and (for Exhibit 5)

1 of the corresponding ruling, not as to the truth of any contested factual or legal proposition stated
2 in the records or rulings. (See *Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1564 [judicial notice
3 of court records reaches existence and content, not contested truth].)

4 **C. The materials are relevant to the renewed application.**

5 Exhibit 1 (JKC3H8 v. Colton) is the new controlling California Court of Appeal authority that
6 surfaced after the April 30, 2026 denial of the MFL-SAC. Exhibits 2, 3, and 4 are the governing
7 California statutes and rule of court for renewed applications, leave to amend, anti-SLAPP timing,
8 and CRC 3.1324 compliance. Exhibit 5 is the new circumstance, post-dating the April 30, 2026
9 denial, arising in companion case CGC-25-631801. Exhibit 6 is the docketed defense represen-
10 tation against which the JKC3H8 authority is juxtaposed. Exhibit 7 is the April 30, 2026 minute
11 order itself, taken for context only, including its recital that the Court “did not receive timely no-
12 tice to contest” the tentative on the MFL-SAC line; judicial notice of Exhibit 7 is not a request for
13 reconsideration and does not seek vacatur of the order.

14
15 **III. PROPOSED ORDER LANGUAGE**

16 Plaintiff respectfully proposes that the Court enter the following:

17 “The Court takes judicial notice under Evidence Code sections 451 and 452, subdivisions (a), (b),
18 (c), (d), and (h), of Exhibits 1 through 7 to Plaintiff’s Request for Judicial Notice in Support of
19 Renewed Motion for Leave to File Third Amended Complaint (CCP section 1008(b)). Judicial
20 notice of Exhibits 1 through 4 is taken under Evidence Code section 451 (decisional and statutory
21 law of the state and California Rules of Court). Judicial notice of Exhibits 5, 6, and 7 is taken
22 under Evidence Code section 452, subdivision (d), as to the existence, filing, and content of court
23 records, and not as to the truth of any contested factual or legal proposition stated therein.”

24
25 **IV. SERVICE**

26 This Request and its exhibits are served on Defendant’s counsel of record (Mark G. Tapp, Tyler
27 J. O’Connell, Mason Schubert, and Sarah J. Blithe, Porter Scott, P.C.) by electronic mail per CCP
28 section 1010.6 and Cal. Rules of Court, rule 1.21, with a Proof of Service (POS-050) filed contem-

1 poraneously. Service is effectuated on or before Tuesday, June 2, 2026, in compliance with CCP
2 section 1005(b).

3 _____
4 Date: May 21, 2026

By: _____ Dylan Franciscus Rosario, Plaintiff in Pro Per 7624 Melody Drive
Rohnert Park, CA 94928 Tel: 650.488.7510 E: soltrinox@gmail.com

Dated: May 25, 2026



FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

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DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

Plaintiff declares under penalty of perjury under the laws of the State of California (Code Civ. Proc., § 2015.5) that the statements below are true and correct for this request for judicial notice.

#	Authority	Specific requirement	This filing's compliance	Evidence
1	Evid. Code 451–453	Proper categories; neutral descriptions	Items list sources only	Items for notice
2	CRC 3.1306(c)	Request format and item list	Numbered items with citations	RFJN body
3	CRC 3.1113	Organized authority references	TOA or inline cites as used	Body